

House File 886

H-1124

1 Amend House File 886 as follows:

2 1. Page 1, before line 1 by inserting:

3 <Section 1. NEW SECTION. 306.48 Eminent domain power
4 restricted.

5 The department shall not exercise the power of eminent
6 domain, including as provided in chapters 6A and 6B, to acquire
7 land necessary to expand the two-lane portions of United States
8 highway 30 in accordance with a plan adopted under section
9 307A.2, subsections 3 and 5, until the department expends all
10 reasonable alternatives, if the land is part of a century farm,
11 as defined in section 403.17, subsection 10, or is residential
12 real property, as defined in section 535B.1.>

13 2. Title page, by striking lines 1 and 2 and inserting <An
14 Act relating to the improvement of United States highway 30,
15 including prioritization by the state transportation commission
16 and restrictions on associated use of eminent domain.>

17 3. By renumbering as necessary.

NORDMAN of Dallas